



POLICE DEPARTMENT

April 13, 2026

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In the Matter of the Charges and Specifications :
- against - :
Police Officer John Nunziata :
Tax Registry No. 970037 :
PBQN Neighborhood Safety Team :
-----X

Case No.
C-033117

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Anne E. Stone
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU:

Mallika Kaushal, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent:

Seema Iyer, Esq.
Martinez & London, LLP
111 John Street, Suite 640
New York, NY 10603

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Police Officer John Nunziata, on or about September 14, 2023, at approximately 0310 hours, while assigned to the 110 Precinct and on duty, in the vicinity of the 110 Precinct stationhouse, Queens County, abused his authority as a member of the New York City Police Department, in that PO Nunziata strip-searched Charles Lovett without sufficient legal authority and without following the required procedures.

P.G. 208-05, Page 3, Paragraph (C)(1)

ARRESTS - GENERAL
SEARCH GUIDELINES

P.G. 208-05, Page 4, Paragraph (C)(4)

ARRESTS - GENERAL
SEARCH GUIDELINES

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on March 6, 2026. Respondent, through his counsel, entered a plea of Not Guilty to the subject charge. The CCRB called Charles “Charlie” Lovett (“Complainant”)¹ as a witness. Respondent called Police Officer Matthew Traube to the stand and testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner’s review. Having evaluated all of the evidence in this matter, I find Respondent Not Guilty.

ANALYSIS

This case arises from the arrest and subsequent search at the 110th Precinct of Complainant for possessing a loaded firearm on September 14, 2023. The entire incident was captured by Respondent’s body-worn camera. It is undisputed that on the date in question, Respondent and Police Officer Matthew Traube pulled over a BMW driven by Complainant for excessively tinted windows. In the course of the vehicle stop, the officers discovered a loaded firearm in the car, arrested Complainant, and conducted a frisk prior to placing them into the

¹ Complainant testified that they are a transgender woman who utilizes they/them pronouns.

RMP. Once at the precinct, Respondent brought Complainant before the desk sergeant. While there, Respondent searched Complainant again, including utilizing a hand-held metal detector. Respondent then took Complainant to the cell area where another search was conducted. At issue is whether that search constituted an improper strip search. (Tr. 20-27, 39, 43, 55-58, 66-68, 116-17; CCRB Ex. 1, *Respondent body-worn camera*; CCRB Ex. 4)

Complainant testified that in the cell area, Respondent instructed them to remove their shoelaces and then, “made me take off my sweatshirt.” Complainant asserted that they were wearing a tee shirt, a bra, and a silicone prosthetic “breast plate.” According to Complainant, Respondent then “proceeded to pat me down again and check my -- check in my -- under my shirt, pulled down my bra, and making sure I didn’t have anything.” Complainant asserted that while Respondent “was pulling at my bra,” it was exposed, causing Complainant to feel “embarrassed” and “violated.” Complainant corrected this statement during cross-examination, admitting that it was the top curve of the silicone prosthetic that became momentarily visible. (Tr. 20-23, 39; CCRB Ex. 4, *still shot of Respondent’s body-worn camera footage*)

Complainant testified that neither Respondent nor Police Officer Traube asked them about their gender identity, either on the street or at the desk. In addition, Complainant alleged that while they were in the cell area, Respondent did not ask Complainant if they preferred to be searched by an officer of a different gender, nor did he call a supervisor. During cross-examination, when asked whether they proactively informed the officers that they identify as a woman, Complainant admitted that they had not. Complainant expounded, “I figured it was self-explanatory. I didn’t need to state what I thought was obvious because I have breasts,” referring to the prosthetic. Complainant continued, “How many males do you know walk around with --

with breasts, aside from when they're fat? I just thought it was obvious. And if he would have asked, I would have stated it." (Tr. 42-43)

Complainant contended that they had no independent recollection of Police Officer Traube asking them in the cell area about whether they identify as female or male. After watching the body-camera footage of Police Officer Traube inquiring about gender identity, Complainant denied that their recollection had been refreshed. Complainant then asserted that they heard themselves respond "female" to Police Officer Traube's inquiry. In addition, they conceded that they heard Police Officer Traube reply "male" on the recording and acknowledged not correcting him. (Tr. 26-27, 33-34, 43)

Respondent testified that because of the dark tinted windows on Complainant's car, he could not see the gender of the driver prior to approaching the window. He recalled that when Police Officer Traube ran the license plate, the registered owner, Complainant, was listed as "Charles Lovett." Respondent described the interaction with Complainant as "calm" and noted that they were compliant. Respondent stated that neither he nor Police Officer Traube used any salutations, like "mister" or "miss" when addressing Complainant. He also acknowledged that neither of them asked Complainant about their gender during the car stop or at the desk. (Tr. 55-58)

Respondent described being in the cell area and hearing Police Officer Traube ask Complainant, "what they identify as." He maintained that he heard Complainant reply, "male" and then Police Officer Traube "asked again, and then he repeated the answer, ['male'], back to [Complainant]" to confirm. Respondent asserted that if Complainant had answered "female," he would have asked a female officer to search Complainant before placing them into the cell. (Tr. 63-64)

At trial, Respondent explained that before an arrestee is placed into a cell, officers have to “make sure that there’s absolutely nothing going in the cells, whether it's a weapon, drugs, even a string that they can maybe harm themselves with.” According to Respondent, this procedure also required him to ensure that Complainant was wearing only one layer of clothing. He acknowledged that once Complainant’s sweatshirt was removed, he observed that Complainant appeared to have breasts. Respondent maintained that because Complainant had told the officers that they were male, he continued processing Complainant as a male. He recalled asking Complainant what was inside their shirt and Complainant responded by pulling the shirt forward. Respondent stated, “I just saw the shirt going, like, outwards. I didn’t see anything else.” (Tr. 66-68)

Respondent explained that he then “grabbed the shirt and I shook it out, made sure that nothing fell to the floor” before placing Complainant into a cell. He explained that he conducts this type of search with any male prisoner. Respondent denied seeing a bra; however, he admitted that he glimpsed a portion of the top of Complainant’s silicone prosthetic when he grabbed Complainant’s shirt. Respondent described pulling the silicone prosthetic away from Complainant’s chest and shaking it to ensure that there was nothing hidden underneath. Respondent denied that this action constituted a strip search of Complainant. He explained that he did not need to perform a strip search of Complainant because “[u]sually a strip search is conducted on known drug dealers that we have intel on. You know that they keep drugs in places that you wouldn’t readily be able to find. Or maybe if when [you’re] searching, you feel something in someone’s pants where it shouldn’t be, that’s when we conduct the strip search,” those circumstances were not present with regard to Complainant’s arrest. (Tr. 69, 89)

Respondent acknowledged that after he observed the outline of breasts through Complainant's shirt, he did not ask if they preferred being searched by a female officer nor did he call for a supervisor. (Tr. 84)

Police Officer Traube took the stand and recounted that it is "standard protocol" to ask an arrestee which gender they identify as. Police Officer Traube recalled hearing Complainant answer "male" twice and that he confirmed this by repeating it back to them. Police Officer Traube acknowledged that when Complainant took the sweatshirt off, they appeared to have breasts. He testified that because Complainant had previously told him that they identified as a male, he did not ask whether they preferred to be searched by a female police officer. Police Officer Traube denied seeing the top of the silicone prosthetic during the search, stating that he "could not see anything when [Respondent] grabbed the shirt." (Tr. 107-09, 116-17, 120)

Respondent is charged with conducting an unlawful and improper strip search of Complainant. CCRB argued that even if Respondent believed that Complainant answered "male," when Complainant took off their sweatshirt, their "gender expression [became] either crystal clear, or at least that raises some questions" when he saw breasts. (Tr. 141) CCRB asserted that Respondent was then required to ask Complainant if they wanted to be searched by a female officer and to call a supervisor before proceeding. They argued that because he did not, the revealing of the top sliver of the silicone prosthetic constituted an improper strip search in violation of the Patrol Guide. For the reasons set forth below, I disagree with CCRB and find that Respondent's actions did not constitute an improper strip search.

First, I find that Respondent did not conduct a strip search. Patrol Guide 208-05, section C defines a strip search as "any search in which an individual's undergarments (e.g., bra, underwear, etc.) and/or private areas are exposed or in which an individual's clothing is

removed, lifted up or pulled down to expose undergarments of private areas.”² I credit Respondent’s testimony he did not intend to conduct a strip search because he did not believe one was necessary. Instead, I find that Respondent conducted a “stationhouse” search pursuant to Patrol Guide 208-05, section B. This procedure requires officers to “upon arrival at precinct of arrest or other Department facility... conduct a thorough search of the prisoner’s person and clothing to ensure the safety of all persons within the facility and to remove weapons, contraband and evidence not discovered by the frisk.” The procedure further states, “A search at a police facility, which is not the same as a ‘strip search,’ includes the removal of outer garments.” It also instructs that, “all pockets are to be emptied and all clothing not removed will be examined by grabbing, crushing and squeezing the garments and by sliding the hands across the body to detect articles that may be underneath or sewn to the clothing.” The tribunal finds that this Patrol Guide 208-05, section B “stationhouse” search was not converted into a strip search simply because a small sliver of the top of the silicone prosthetic, near Complainant’s clavicle, was momentarily exposed.

Second, I have reviewed the body-worn camera footage and have concluded that Complainant’s testimony that they were not asked by either officer about gender identification, and that they heard themselves say, “female,” after being shown the body-worn camera footage, was incorrect. The video clearly shows Police Officer Traube asking Complainant about their gender identity. Moreover, Respondent’s and Police Officer Traube’s statements that Complainant answered, “male,” were also corroborated by Respondent’s body-worn camera footage. Complainant’s responses to Police Officer Traube’s inquiry about gender may have been difficult to hear because of the loud fan. However, when he leaned in and asked “what,”

² A strip search may only be authorized by a supervisor and requires reasonable suspicion that weapons, contraband, or evidence may be concealed in a manner which may not be discovered by other search methods.

Complainant can be heard answering, "male." Police Officer Traube then confirmed this response by repeating the word "male" in a questioning tone, to which Complainant gave no further reply. (CCRB Ex. 1 at 25:20-25:30) Given that Complainant self-identified as a male, I find, based on a preponderance of the credible evidence, that it was proper, for Respondent to perform the "stationhouse" search prior to placing Complainant into the cell. While it is unfortunate that a sliver of the top of Complainant's silicone prosthetic was briefly visible, the CCRB has failed to prove by a preponderance of the credible evidence that this incidental exposure converted the action into a strip search. Accordingly, I find Respondent Not Guilty.

Respectfully submitted,



Anne E. Stone

Assistant Deputy Commissioner Trial

APPROVED

JUN 17 2026

JESSICA S. TISCH
POLICE COMMISSIONER